

ASCII MASTER FLOW – PANEL 1/12: Citizenship: membership, rights and single national status

PERSON WITHIN INDIA

- +-- CITIZEN: political membership and citizen-specific constitutional rights
 - | Articles 15, 16, 19 and 29 use citizen/citizens
 - | Article 30 uses minorities; do not add a citizen-only word absent from the text
- +-- NON-CITIZEN: Articles 14, 20, 21 and 25 protect persons
 - | Article 22(3)(a) excludes enemy aliens only from clauses (1)-(2)

CITIZENSHIP = membership | DOMICILE = permanent legal home | RESIDENCE = factual link

SINGLE CITIZENSHIP does not erase constitutionally authorised regional protection.

CASE CONTROL: Pradeep Jain (1984) explains one Indian domicile, not State citizenship.

ASCII MASTER FLOW – PANEL 2/12: Articles 5-7: commencement citizenship decision tree

AT COMMENCEMENT: 26 JANUARY 1950

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+-- ARTICLE 5: domicile in India + birth | parentage | five-year residence
+-- ARTICLE 6: Pakistan-to-India migration
|   before 19 Jul 1948 -> residence since migration
|   on/after 19 Jul 1948 -> application, six-month residence and registration
+-- ARTICLE 7: India-to-Pakistan migration after 1 Mar 1947 -> excluded
    permit for resettlement/permanent return -> post-19 Jul Article 6 route
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TRAP: residence alone never replaced Article 5 domicile.

ASCII MASTER FLOW – PANEL 3/12: Articles 8-11: diaspora, disqualification, continuity and Parliament

ARTICLE 8 -> Indian origin abroad + diplomatic/consular registration

ARTICLE 9 -> voluntary foreign citizenship blocks Articles 5, 6 and 8 claims

ARTICLE 10 -> citizenship continues subject to parliamentary law

ARTICLE 11 -> Parliament may regulate acquisition, termination and every other matter

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CITIZENSHIP ACT, 1955

CONTROL: Article 9 is commencement-context text; later termination also rests on Section 9.

ASCII MASTER FLOW – PANEL 4/12: Five acquisition routes and their exact gates

CITIZENSHIP ACT, 1955

- +-- BIRTH: place + date + parental status + Section 3(2) exceptions
- +-- DESCENT: citizen parent + date-specific registration/declaration controls
- +-- REGISTRATION: listed category + calculated residence + oath + discretion
- +-- NATURALISATION: 12 months + 11/14 aggregate + other Third Schedule tests
- +-- INCORPORATION: Central Government order for newly incorporated territory

NO AUTOMATIC ROUTE merely from marriage, ancestry, property, residence or an identity card.

ASCII MASTER FLOW – PANEL 5/12: Birth, descent and registration: date-and-category drill

BIRTH IN INDIA

1950-before 1 Jul 1987 -> birth generally sufficient, subject to exceptions

1 Jul 1987-before 3 Dec 2004 -> either parent a citizen

from 3 Dec 2004 -> both citizens OR one citizen + other not illegal migrant

DESCENT OUTSIDE INDIA

before 10 Dec 1992 -> paternal rule | later -> either parent

from 3 Dec 2004 -> consular registration plus statutory declaration controls

REGISTRATION -> category first; seven-year formula is 12 months + 6 of prior 8 years.

ASCII MASTER FLOW – PANEL 6/12: Loss, safeguards and OCI cancellation are category-specific

RENUNCIATION -> full legal renunciation, minor follows with resumption window

TERMINATION -> voluntary acquisition of foreign citizenship; Section 9 controls

DEPRIVATION -> eligible category + listed ground + public-good finding + procedure
fraud | disloyalty | enemy dealing | specified conviction | seven years abroad

OCI IS NOT CITIZENSHIP

Section 7D requires a hearing. The 11 Aug 2025 Section 7D(da) notification adds:

sentence of at least two years OR charge-sheet for an offence punishable by seven years.

ASCII MASTER FLOW – PANEL 7/12: Assam Section 6A: three streams and the controlling judgment

ASSAM SPECIFIC SECTION 6A

before 1 Jan 1966 -> deemed citizens from 1 Jan 1966

1 Jan 1966-before 25 Mar 1971 -> detection + registration + ten-year vote exclusion

on/after 25 Mar 1971 -> no Section 6A protection

IN RE: SECTION 6A (2024) – 17 OCTOBER 2024

4:1 majority upheld validity but required effective implementation

Pardiwala J dissented prospectively on temporal/detection design

NRC reference: midnight of 24 March 1971; do not confuse it with CAA 2014.

ASCII MASTER FLOW – PANEL 8/12: CAA class and the 19 August 2026 Collector procedure

CAA CLASS – six communities + three countries + entry on/before 31 Dec 2014

Hindu | Sikh | Buddhist | Jain | Parsi | Christian

Afghanistan | Bangladesh | Pakistan

19 AUG 2026: G.S.R. 742(E) + S.O. 4583(E)

Specified State/UT applicants -> electronic application to jurisdictional Collector

Collector -> verify -> enquire -> oath -> eligibility/suitability -> grant or reject

Pending committee applications transfer to Collector. Eligibility and 2014 cut-off do not change.

ASCII MASTER FLOW – PANEL 9/12: CAA equality debate and territorial protections

ARTICLE 14 TEST

comparator -> intelligible differentia -> rational nexus -> arbitrariness

STATE CASE -> selected persecuted minorities; humanitarian and staged legislation

CHALLENGE -> religion/country exclusions; under-inclusion; secularism; Assam impact

SECTION 6B DOES NOT APPLY IN

Sixth Schedule tribal areas of Assam, Meghalaya, Mizoram and Tripura
areas under the notified Inner Line

STATUS THROUGH 28 AUG 2026: law/rules operate; no located final merits judgment.

ASCII MASTER FLOW – PANEL 10/12: Documents and exact PYQ controls

PROOF HIERARCHY

Citizenship certificate -> direct statutory evidence

Passport/EPIC -> strong or relevant evidence, not irrebuttable in every dispute

Aadhaar -> does not by itself prove citizenship or domicile

2018 PRELIMS GS-I Q12: Aadhaar proof + deactivation -> neither statement correct

2021 PRELIMS GS-I Q89: one citizenship/domicile; birth-only President; deprivation
exact options yield 1 only; repository solution remains qualified if official key is absent.

ASCII MASTER FLOW – PANEL 11/12: Executable 10, 15 and 20-mark answer architecture

10 MARKS / 150 WORDS

define demand -> 3 legal anchors -> one caveat/current point -> qualified verdict

15 MARKS / 250 WORDS

thesis -> Articles 5-11 -> statutory mechanism -> judgment/debate -> balance -> verdict

20 MARKS / 250 WORDS

exact class/doctrine -> argument and counterargument -> named evidence -> federal impact
-> 2026 procedural status -> constitutional test -> feasible safeguards -> conclusion

For every model: demand decode + executable answer + why it earns + specific improvement.

ASCII MASTER FLOW – PANEL 12/12: Qualified synthesis: membership under constitutional supervision

INDIAN CITIZENSHIP

constitutional founding settlement

- + parliamentary statutory administration

- + judicial review under equality, liberty and natural justice

BALANCE

equal membership + fraternity

lawful migration control + regional protection

diaspora access without political citizenship

humanitarian facilitation without arbitrary classification

FINAL LINE: membership is legitimate only when classification, proof and procedure remain lawful.